

TENTATIVE RULING(S) FOR August 17, 2026

Department S37 – Judge Winston Keh

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2520495

Perea v. Gm

TENTATIVE RULING(S):

Defendant General Motors LLC's Motion for Relief or to Set Aside the Code of Civil Procedure
Section 998 Offer

Plaintiff's Motion to Enforce the Settlement

Defendant's Motion for Summary Judgment or Alternatively Summary Adjudication

Plaintiff's Motion to Deem Requests for Admission Admitted

(Additionally: Plaintiff's Request for Statement of Decision)

The Court has read and considered the moving and opposing papers. For the reasons set forth below, the Court rules as follows.

GM'S MOTION FOR RELIEF OR TO SET ASIDE THE SECTION 998 OFFER

1. Excusable Mistake – CCP section 473(b)

Defendant GM seeks an order setting aside its section 998 offer. GM argues (1) it made the offer under an excusable mistake and (2) the settlement is not reasonably performable.

The Court finds GM has not demonstrated excusable mistake within the meaning of Code of Civil Procedure section 473, subdivision (b). GM's explanation—that it made the offer under a mistaken belief about Plaintiff's possession/ownership of the subject vehicle and later "recognized the error"—is unsupported by the specific factual showing required to establish excusable mistake. GM does not identify who made the asserted mistake, what information was reviewed before the offer was made, what investigation was undertaken regarding ownership and possession, why available information concerning J.P. Luxe, Inc. was not appreciated, or what cause brought GM to recognize the alleged error.

The Court further concludes that, for purposes of the present motion, the existence of a potentially relevant legal issue under Code of Civil Procedure section 871.24 is distinct from whether GM carried its burden to show excusable mistake as to its failure to identify and evaluate that issue before making the section 998 offer.

Accordingly, GM's motion fails on the excusable mistake theory.

2. Performance Not Shown Impossible

GM also argues the settlement cannot be performed because Plaintiff allegedly divested himself of the vehicle and therefore cannot transfer title or deliver the vehicle as contemplated by the agreement.

The Court finds GM has not established impossibility of performance. The accepted section 998 offer does not condition performance on Plaintiff being the personally registered owner of the vehicle. Instead, paragraph 5 requires Plaintiff to deliver the subject vehicle to GM and to "execute such documents as necessary to transfer possession of and clear title to the Subject Vehicle to GM."

On the present record, although questions may remain regarding documentation or corporate action necessary to transfer clear title, GM has not shown that performance is impossible as opposed to merely inconvenient, contingent, or requiring third-party cooperation.

For these reasons, the Court DENIES Defendant GM's Motion to Set Aside its section 998 Offer.

PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

1. Enforceable Settlement

The Court finds the parties entered into an enforceable settlement through the section 998 process. GM served its written section 998 offer on January 13, 2026, and Plaintiff accepted on January 15, 2026, by selecting the alternative under paragraph 3 providing for reasonably incurred attorney's fees, expenses, and costs to be determined by noticed motion. Plaintiff thereafter filed the executed offer and proof of acceptance.

GM does not dispute that it made the offer and that Plaintiff timely accepted. GM instead argues Plaintiff lacked standing in the underlying action. The Court concludes the present motion does not provide a basis to set aside the settlement where GM's motion for relief is denied and where GM has not shown a procedural basis under section 473 to disturb the agreement after acceptance.

Accordingly, the Court GRANTS IN PART Plaintiff's Motion to Enforce Settlement.

2. Vehicle Transfer Requirement Must Remain

Plaintiff seeks enforcement of the settlement terms. The Court finds the vehicle transfer requirement is material and remains part of the parties' bargain. Enforcing the settlement without maintaining Plaintiff's obligation to deliver the vehicle and clear title would materially alter the agreed exchange.

The Court therefore orders that the settlement remains enforceable according to its terms, including paragraph 5's vehicle transfer and title-clearing obligations. Plaintiff continues to offer performance and remains ready and willing to complete the transfer. Upon delivery of the vehicle and execution of the necessary documents to effect possession and clear title, GM must make the payments required by paragraph 6 within the time specified by the offer.

If, during the transfer process, a concrete impediment arises that is not merely the legal position GM advances at this stage, the Court retains jurisdiction to address the concrete enforcement issue under paragraph 8 and Code of Civil Procedure section 664.6.

3. Prejudgment Interest Denied

Plaintiff's request for prejudgment interest at 10% per annum under Civil Code sections 3287, subdivision (a), and 3289, subdivision (b), is DENIED. The accepted section 998 offer fixes the consideration GM agreed to pay and does not provide for prejudgment interest or an increase in the settlement amount based on delayed performance.

Section 664.6 permits entry of judgment reflecting the terms of the parties' settlement. It does not authorize the Court to add material terms or additional damages not agreed to by the parties.

Accordingly, Plaintiff's request to add prejudgment interest is DENIED.

4. Sanctions / Fees Denied

To the extent GM requests attorney's fees and costs incurred in opposing Plaintiff's enforcement motion, that request is DENIED. GM identifies no statutory basis for such an award and did not seek the relief by noticed motion.

DEFENDANT'S MOTION FOR SUMMARY JUDGMENT OR, ALTERNATIVELY, SUMMARY ADJUDICATION

Given the Court's ruling denying GM's motion to set aside the section 998 offer and granting Plaintiff's motion to enforce the settlement, GM's motion for summary judgment/summary adjudication is moot.

Accordingly, the Court DENIES AS MOOT Defendant's Motion for Summary Judgment or, alternatively, Summary Adjudication.

PLAINTIFF'S MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED

Plaintiff's motion to deem requests for admission admitted is likewise moot in light of the settlement enforcement and the denial of GM's motion to set aside the 998 offer.

Accordingly, the Court DENIES AS MOOT Plaintiff's Motion to Deem Requests for Admission Admitted.

PLAINTIFF'S REQUEST FOR STATEMENT OF DECISION

Plaintiff's request for statement of decision is DENIED.

CONCLUSION / ORDER

Defendant GM's Motion for Relief or to Set Aside the section 998 Offer is DENIED.

Plaintiff's advance objection is OVERRULED.

Plaintiff's Motion to Enforce Settlement is GRANTED IN PART.

Plaintiff's request for prejudgment interest is DENIED.

GM's request for attorney's fees and costs incurred opposing enforcement is DENIED.

GM's Motion for Summary Judgment or Alternatively Summary Adjudication is DENIED AS MOOT.

Plaintiff's Motion to Deem Requests for Admission Admitted is DENIED AS MOOT.

Plaintiff's Request for Statement of Decision is DENIED.